BY ORDER OF THE
SECRETARY OF THE AIR FORCE

HEADQUARTERS OPERATING INSTRUCTION 65-4
25 October 2012

Financial Management

RELATIONSHIP WITH SURVEYS AND INVESTIGATIONS STAFF OF THE HOUSE COMMITTEE ON APPROPRIATIONS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This publication implements AFPD 65-6, *USAF Budget Policy* and AFPD 90-4, *Relations with Congress*. It provides Headquarters USAF (Secretariat and Air Staff) organizations guidance on Air Force relationships with the Surveys and Investigations (S&I) Staff of the House Committee on Appropriations of the Congress. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Form 847s from the field through Major Command (MAJCOM) publications/forms managers. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of in accordance with Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS) located at https://www.my.af.mil/afrims/afrims/afrims/rims.cfm

SUMMARY OF CHANGES

The records disposition schedule URL and Attachment 1 references were updated for accuracy and latest publication dates. All references to HQ USAF were changed to HAF.

1. Overview. Establishes guidelines for HAF organizations' relationships with the Surveys and Investigations Staff of the House Committee on Appropriations to determine a functional point of contact and a budget monitor for the investigation.

2. Investigation Responsibilities. When notified by the Office of the Under Secretary of Defense Comptroller OUSD(C)), of an intended investigation, SAF/FMBL will contact the

appropriate HAF organizations to determine a functional point of contact and a budget monitor for the investigation:

2.1. SAF/FMBL:

2.1.1. Determines the nature and scope of the investigation and notifies the appropriate functional staff contact for congressional matters and the SAF/FMB Directorate.

2.1.2. Obtains, from the appropriate functional area staff contact for congressional matters, the name of the nominee recommended for the Air Force Primary Point of Contact.

2.1.3. Obtains, from the appropriate SAF/FMB Directorate, the name of the nominee recommended for Budget Monitor.

2.1.4. Provides the name of the Air Force Primary Point of Contact to the OUSD Staff Coordinator.

2.1.5. Provides any additional instructions or background to the Air Force Primary Point of Contact and the Budget Monitor.

2.1.6. Gives the Air Force Primary Point of Contact and the Budget Monitor the names and security clearances of the investigator.

2.1.7. Participates in the initial meeting between the investigators, the Air Force Primary Point of Contact, and Budget Monitor, if necessary.

2.1.8. Maintains a summary status of all active investigations, copies of advisory reports to management, and final status reports.

2.2**.** All HAF two-letter organizations will:

2.2.1. Submit the name of the staff contact for congressional matters. This individual is responsible for assigning and designating in writing the Air Force Primary Point of Contact responsibility to a specific division and an individual within their functional area.

2.2.2. Designate a functional area representative to be the Air Force Primary Point of Contact.

2.3. The Air Force Primary Point of Contact:

2.3.1. Serves as the POC, interfacing with the Surveys and Investigations Team for the duration of the investigation. The POC is the focal point within the assigned functional area of investigation and coordinates all staff or field action.

2.3.2. Briefs the Surveys and Investigations team members and provides necessary background information. Using this instruction and AFPD 90-401, Air Force *Relations with*

Congress, as guidance, reviews, and approves the releases of all Air Force material to the investigators. Clearance for release of all financial related material must be obtained through the Budget Monitor. Clearance for release of other material must be obtained from the appropriate staff offices, or the Secretary of the Air Force (SECAF) through the Air Force General Counsel (SAF/GC). This includes any required coordination concerning policy.

2.3.3. Arranges for requested visits to field installations. Formally notifies the staff offices, commands, and agencies of primary and collateral interest, the resident comptroller, and the responsible headquarters of these trips. Include in the notification to the field the following information: security clearance of the investigators, purpose of the trip, and any additional information and guidance of interest. This includes pertinent instruction and regulations and special instructions on the release of all information, including classified and "For Official Use Only" information, to the Surveys and Investigations Team.

2.3.4. Contacts the Air Operations Office, Directorate of Legislative Liaison (SAF/LL) (See paragraph 2.7)), for assistance in making travel arrangements for the investigators. When requested, SAF/FMBL will provide guidance to the Air Force Primary Point of Contact.

2.3.5. Provides SAF/FMBL an interim status report of unusual or controversial matters as the investigation progresses. Prepares a final summary report upon completion of the investigation.

2.3.6. Maintains a complete record of the progress of the investigation, including a copy of all material furnished to the investigators.

2.3.7. Informs SAF/FMBL and the appropriate HAF two-letter organizations of significant developments as they occur.

2.3.8. Only the Air Force Primary Point of Contact, after coordinating with the Budget Monitor, will release documents which reveal out-year program or financial data. The Budget Monitor processes requests for such release, through SAF/FMB. The OUSD(C) is the final authority on release of out-year program/budget information to investigators.

2.4. SAF/FMB designates a division representative to be the Budget Monitor who will:

2.4.1. Requests assistance from other SAF/FMB Divisions as required. Coordinates all material furnished to the investigators, whether requested formally or informally; collaborates with the Air Force Primary Point of Contact in transmitting requests for information; ensures that all budget material furnished to the investigators is properly coordinated within SAF/FM and HAF; and obtains proper clearances when necessary.

2.4.2. Informs SAF/FMB and SAF/FMBL of significant developments. Maintains a complete record of the progress of the investigation. Assists the Air Force Primary Point of Contact in preparing reports of unusual or controversial matters during the course of the investigation. After the investigation is complete, assists the Air Force Primary Point of

Contact in preparing a final status report, summarizing the significant aspects of the investigation.

2.4.3. Coordinates reports of field visits with the Air Force Primary Point of Contact.

2.5. SAF/LLO: Arranges military air support, releases messages providing Department of Defense security clearance, issues orders for investigators' overseas travel, and assists the Air Force Primary Point of Contact in making travel arrangements for Surveys and Investigation Teams.

3. Investigation Guidelines and Procedures:

3.1. Relationship with Investigators: Investigators must be accorded the same degree of courtesy and cooperation that is shown to a member of the committee they represent. After proper security clearance and identification is provided by OUSD(C) and SAF/FMBL, the investigators will be admitted to the base, field installation, or facility they are visiting and they will be provided with separate private working spaces and facilities as a central point for their activities. All personnel will cooperate with the Investigation Team to the fullest extent necessary to fulfill the Team's requirements, consistent with the provisions set forth in paragraph 4 of this HOI.

3.2. Notification of Surveys and Investigations Team Visits:

3.2.1. The Surveys and Investigation Team notifies the Air Force Primary Point of Contact in advance of their visits. The Air Force Primary Point of Contact then notifies the Air Force activities concerned (including their headquarters) and makes arrangements to assist the Surveys and Investigations Team. The Surveys and Investigations Team notifies SAF/FMBL by telephone or message as soon as possible in the event an Air Force commander or other representative receives a notice of investigation or visit from other than the Air Force Primary Point of Contact.

3.2.2. All activities report on field visits to the Primary Point of Contact according to AFI 65-601, Volume 1, *Budget Guidance and Procedures,* Chapter 19 (Official Visits Concerning Budget Matters). The Surveys and Investigations Team usually requests that it not be accompanied or escorted on field visits. If the Survey and Investigations Team changes its original itinerary en route, the commander being visited takes the actions outlined in AFI 90-401*, Air Force Relations with Congress*, paragraph 4.6. The Air Force Point of Contact furnishes any supplemental guidance.

4. Guidelines on Providing Information:

4.1. It is essential the Congress receive adequate information about Air Force programs and operations. It is Air Force policy to cooperate with Congress to the utmost and to make requested information promptly available to it through its committees, staff members, and investigative staffs.

4.2. The Air Force Primary Point of Contact approves the release of all information to the investigators.

4.3. DODI 5500.16, *Relationship with the Surveys and Investigations Staff, House Appropriations Committee* and HOI 65-1, Presenting and *Developing, Implementing Annual Appropriations and Budget Authorizations under 10 U.S.C. 114,* provide guidance concerning responsibilities and relationships with investigators. AFPD 90-4, *Relations with Congress* and AFPD 65-6, *Budget*, provide general guidance concerning release of information to investigators.

4.4. In no case will any field activity or HQ USAF office refuse to provide information to the investigators. If it is believed that the information should not be provided, refer the request to the Air Force Primary Point of Contact along with the rationale for the proposed denial. The fact that furnishing certain information might subject the Department of the Air Force to possible criticism is not a reason for refusing to furnish information. Denial of information to investigators will be elevated to the Secretary of the Air Force (SECAF) and ultimately to the Secretary of Defense.

4.5. A situation may occur where there is a question whether certain information requested may be furnished to Congress, even in confidence. In such case, the final determination is made at HQ USAF. A decision to deny information must be approved by the SECAF. The field activity of the staff office concerned forwards the material, along with its recommendations, directly to the Air Force Primary Point of Contact for review and appropriate clearance. Specifically, do not release the following information without prior SECAF approval:

4.5.1. Inspector General reports, Auditor General reports, or other reports of inspections, investigations, or surveys that pertain to safety or the internal management, administration, or operation of the Air Force.

4.5.2. Records of conversations or communications between Air Force personnel or between such personnel and representatives of other agencies of the Executive Branch, if the conversations or communications are merely advisory or preliminary in nature and do not represent any final official action.

4.6. "For Official Use Only" information is described in DODD 5400.07, *DoD Freedom of Information Act (FOIA) Program*, and AFMAN 33-302, *Freedom of Information Act Program*, and must be properly protected from disclosure.

4.7. With the concurrence of the Air Force Primary Point of Contact, information is provided directly to investigators during field visits. A copy of the information should be expeditiously sent to the Air Force Primary Point of Contact for review and retention.

4.8. Information classified in the interest of national defense must be properly safeguarded. Furnish classified information to the Surveys and Investigations Team only when such information is necessary in the performance of the investigation. The Air Force Primary

Point of Contact notifies SAF/AAZ on any request by the investigators for classified data. SAF/AAZ obtains the special access security clearance authorization and justification.

5. Reporting Requirements:

5.1. Air Force Primary Point of Contact:

5.1.1. Prepares and submits to SAF/FMBL an interim status report on any unusual or controversial matters during the course of the investigation. The report covers the main points of unusual or controversial areas of interest expressed by the Surveys and Investigations Team during the reporting period. Include in the interim status report:

5.1.1.1. A brief narrative covering the key points with emphasis on the problem areas;

5.1.1.2. Summaries of any reports of Surveys and Investigations Team visits received from commands including similar problems encountered;

5.1.1.3. Anything which may prompt questions during congressional hearings.

5.1.2. Prepares a final status report when it is believed that Air Force involvement in the investigation has ended. The Air Force Primary Point of Contact coordinates this report with the Budget Monitor and the appropriate HAF two-letter organizations and submits to SAF/FMBL. The final status report:

5.1.2.1. Highlights the significant aspects of the investigation, paying particular attention to those areas that the Air Force may be singled out for criticism;

5.1.2.2. Includes possible or probable findings and conclusions of the investigators, if known;

5.1.2.3. Includes possible lines of questioning which may develop in congressional hearings.

TIM BEYLAND
Administrative Assistant to the
Secretary of the Air Force

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DODD 5400.07, *DoD Freedom of Information Act (FOIA) Program*, 28 July 2011

DODI 5500.16, *Relationship with the Surveys and Investigations Staff, House Appropriations Committee*, 21 October 1996

AFI 65-601, Volume 1, *Budget Guidance and Procedures*, 16 August 2012

AFI 90-401, *Air Force Relations with Congress*, 1 July 1998

AFMAN 33-302, *Freedom of Information Act Program*, 21 October 2010

AFMAN 33-363*, Management of Records*, 1 March 2008

AFPD 65-6, *Budget*, 1 May 1998

AFPD 90-4, *Relations with Congress*, 14 June 2012

HOI 65-1, *Developing, Presenting and Implementing Annual Appropriations and Authorizations Under Title 10 United States Code Section 114*, 2 February 2009

Adopted/Prescribed Forms

AF Form 847, *Recommendation for Change of Publication,* 22 September 2009

Abbreviations and Acronyms

DODD—Department of Defense Directive
DODI—Department of Defense Instruction
AFI—Air Force Instruction
AFMAN—Air Force Manual
AFPD—Air Force Policy Directive
HOI—Headquarters Operating Instruction

Terms

Air Force Primary Point of Contact—Is the representative of the functional area primarily responsible for the subject or program. The Air Force Primary Point of Contact acts as the OPR for the Air Force concerning all matters dealing with a specific investigation.

Air Force S&I Coordinator—The Deputy Assistant Secretary (Budget) (SAF/FMB) appoints an individual in SAF/FMBL as the Air Force S&I Coordinator. This individual, usually the Chief of the Budget Liaison Division, acts as the initial point of contact and central coordinator on all matters concerning the activities of the S&I Staff with the Air Force. SAF/FMBL has the responsibility for assigning the Air Force Primary Point of Contact on budget related matters during the course of the investigation.

Budget Monitor—The Budget Monitor is the representative of the SAF/FMB directorate responsible for the appropriation associated with the subject matter under investigation. The Budget Monitor assists the

Primary Point of Contact on budget related matters during the course of the investigation.

OUSD Staff Coordinator—DODI 5500.16, *Relationship with the Surveys and Investigations Staff, House Appropriations Committee*, 21 October 1966, provides for the assignment of an OUSD Staff Coordinator for each investigation. The OUSD Coordinator responsibilities are similar to those delegated to the Office of Budget and Appropriations Liaison (SAF/FMBL).

The Investigation Team—The Investigation Team, composed of members of the S&I Staff, is an extension of the House Committee on Appropriations. It conducts investigations for the committee at their direction. An investigation may concern a weapon system, policy, concept, particular action the Air Force or another agency has taken, or a condition existing in one or more of the Services in which the Committee has a particular interest.

Staff Contact for Congressional Matters—All HAF two-letter organizations submit the name of an individual responsible for assignment of the Air Force Primary Point of Contact responsibility to a specific office and individual within their functional area.

Reports—Includes status of interim, final or advisory reports to management.